

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DENNIS TORRES,

Plaintiff,

SUMMONS

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, UNDER COVER POLICE OFFICER #376, Individually and in his/her Official Capacity, P.O. EVANS BELLAVOIX, Shield No. 7408 (Tax Id. No. 953675), Individually and in his/her Official Capacity, DET. JAWUAN HUBBARD, Shield No. 29121 (Tax Id. No. 949121), Individually and in his/her Official Capacity, DET. LOGAN PAYANO, Shield No. 29458 (Tax Id. No. 949458), Individually and in his/her Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Plaintiff designates New York County as the place of trial.

The basis of venue is:
CPLR § 504(3)

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 5, 2019

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER, Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

UNDER COVER POLICE OFFICER #376

NYPD Headquarters

1 Police Plaza, Rm. 110C

New York, NY 10007

P.O. EVANS BELLAVOIX, Shield No. 7408 (Tax Id. No. 953675)

Narcotics Borough Manhattan South

1 Police Plaza, Rm. 110C

New York, NY 10007

DET. JAWUAN HUBBARD, Shield No. 29121 (Tax Id. No. 949121)

Narcotics Borough Manhattan South

1 Police Plaza, Rm. 110C

New York, NY 10007

DET. LOGAN PAYANO, Shield No. 29458 (Tax Id. No. 949458)

Narcotics Borough Manhattan South

1 Police Plaza, Rm. 110C

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DENNIS TORRES,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, UNDER COVER POLICE OFFICER #376, Individually and in his/her Official Capacity, P.O. EVANS BELLAVOIX, Shield No. 7408 (Tax Id. No. 953675), Individually and in his/her Official Capacity, DET. JAWUAN HUBBARD, Shield No. 29121 (Tax Id. No. 949121), Individually and in his/her Official Capacity, DET. LOGAN PAYANO, Shield No. 29458 (Tax Id. No. 949458), Individually and in his/her Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff DENNIS TORRES, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff DENNIS TORRES is a Hispanic male and has been at all relevant times a resident of the County, City, and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal

Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, UNDERCOVER POLICE OFFICER #376 (hereinafter "UC #376"), P.O. EVANS BELLAVOIX, Shield No. 7408 (Tax Id. No. 953675), DET. JAWUAN HUBBARD, Shield No. 29121 (Tax Id. No. 949121), DET. LOGAN PAYANO, Shield No. 29458 (Tax Id. No. 949458), and POLICE OFFICERS "JOHN DOE" #1-10, (the name John Doe being fictitious, as the true names are presently unknown), were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about January 18, 2018 at approximately 7:00 p.m. in the County, City, and State of New York, plaintiff DENNIS TORRES was lawfully driving in the vicinity of 139 Essex St. New York, NY.

9. At the aforesaid time and place, NYPD officers – namely, defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or POLICE OFFICERS “JOHN DOE” #1-10 – blocked off plaintiff’s vehicle and then pointed guns at him and the other passengers of the vehicle.

10. At this time, plaintiff put both of his hands up in the air and immediately thereafter was accosted by defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or POLICE OFFICERS “JOHN DOE” #1-10, who forcefully pulled open the driver side door of his vehicle and demanded that he exit the vehicle and get on the ground.

11. Plaintiff complied, exited the vehicle, and immediately got on to the ground with his hands up. Subsequently, defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back and then searched his person.

12. At no time on January 18, 2018, did defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10, possess probable cause to arrest plaintiff.

13. At no time on January 18, 2018, did defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

14. At no time on January 18, 2018, did defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10, possess probable cause and/or reasonable suspicion to search plaintiff’s person or effects nor did they obtain voluntary consent from him to do so.

15. At no time on January 18, 2018, did defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10, possess information that would lead a

reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's person or effects.

16. Thereafter, plaintiff was transported by, upon information and belief, defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10, to a nearby police precinct where he was searched, fingerprinted, photographed, questioned, confined in a holding cell for several hours, and charged with Criminal Sale of a Controlled Substance and Criminal Possession of a Controlled Substance. Thereafter, plaintiff was transported to Central Booking where he was further detained before being released following arraignment.

17. In connection with plaintiff's arrest, defendants UC #376 and BELLAVOIX, and upon information and belief, defendants HUBBARD, PAYANO, and/or "JOHN DOE" #1-10, filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants UC #376 and BELLAVOIX and upon information and belief, defendants HUBBARD, PAYANO, and/or "JOHN DOE" #1-10, repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

18. Specifically, defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10, falsely stated that plaintiff was involved in the sale of a controlled substance in that he was acting as a "look out" while defendant UC #376 engaged in a drug transaction with other individuals.

19. However, at no time was plaintiff involved in the sale of any controlled substances, nor did he act as a lookout with respect to same, nor did he possess any controlled substances nor have any controlled substances in his custody or control, nor did he commit any crimes and/or offenses or behave unlawfully in any way.

20. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody and made approximately three (3) court appearances before all charges against him were dismissed in their entirety on or about March 8, 2018.

21. In addition, as a result of the foregoing, plaintiff could not work, causing him to lose wages.

22. As a result of the foregoing, plaintiff DENNIS TORRES sustained, inter alia, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, lost wages, and deprivation of his constitutional rights.

STATE CLAIMS

23. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

24. On or about March 8, 2018 and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

25. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

26. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about August 13, 2018.

27. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

28. Plaintiff has complied with all conditions precedent to maintaining the instant action.

29. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT**

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. Defendant police officers UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

32. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for her safety, and humiliated and subjected to handcuffing and other physical restraints.

33. Plaintiff was conscious of said confinement and did not consent to the same.

34. The confinement of plaintiff was without probable cause and was not otherwise privileged.

35. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff’s rights.

36. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, loss of wages, and loss of freedom.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10’s aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

39. As a result of defendants’ conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY**

40. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. Defendant police officers UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

42. Defendant police officers UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 did so without privilege or consent from plaintiff.

43. As a result of defendants’ conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

69. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

70. The aforementioned conduct was committed by defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

71. The aforementioned conduct was committed by defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

72. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

73. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

75. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

76. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

77. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

78. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

79. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

80. On January 18, 2018, defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 commenced a criminal proceeding against plaintiff.

81. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 lacked probable cause to commence said criminal proceeding against plaintiff.

82. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 were motivated by actual malice in commencing said criminal proceeding against plaintiff.

83. From January 18, 2018 until March 8, 2018, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10.

84. As a result of the malicious prosecution against him, plaintiff spent several months making court appearances.

85. On or about March 8, 2018, the criminal prosecution against plaintiff was terminated in his favor when the charges against him were dismissed.

86. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF**
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

87. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

88. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

89. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

90. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

91. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

92. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983

93. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

94. As a result of the aforesaid conduct by defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

95. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

96. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

97. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 created false evidence against plaintiff

98. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney's office.

99. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

100. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 violated plaintiff's

constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

102. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

103. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 misrepresented and falsified evidence before the New York County District Attorney.

104. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 did not make a complete and full statement of facts to the District Attorney.

105. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 withheld exculpatory evidence from the District Attorney.

106. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

107. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

108. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or "JOHN DOE" #1-10 acted with malice in initiating criminal proceedings against plaintiff.

109. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

110. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

111. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

112. Defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10, misrepresented and falsified evidence throughout all phases of the criminal proceedings.

113. Specifically, defendants UC #376, BELLAVOIX, HUBBARD, PAYANO, and/or “JOHN DOE” #1-10, falsely stated that plaintiff was involved in the sale of a controlled substance in that he was acting as a “look out” while defendant UC #376 engaged in a drug transaction with other individuals.

114. However, at no time was plaintiff involved in the sale of any controlled substances, nor did he act as a lookout with respect to same, nor did he possess any controlled substances nor have any controlled substances in his custody or control, nor did he commit any crimes and/or offenses or behave unlawfully in any way.

115. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceeding against plaintiff was dismissed in its entirety on or about March 8, 2018.

116. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he lost wages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

117. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

118. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

119. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police or NYPD employee misconduct; and,
- iv. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- v. failing to take reasonable steps to control and/or discipline police officers who lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

120. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

121. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

122. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

123. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

124. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

125. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
March 5, 2019

BY: _____/S_____

GERALD COHEN

JOSHUA FITCH

ILYSSA FUCHS

COHEN & FITCH LLP

Attorneys for Plaintiff

233 Broadway, Suite 1800

New York, N.Y. 10279

(212) 374-9115

PLAINTIFF'S VERIFICATION

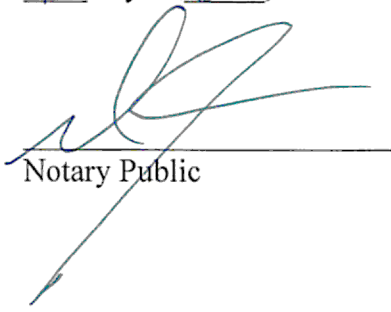
STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

DENNIS TORRES, being duly sworn, deposes and says:

I am the plaintiff in the foregoing action; I have read the annexed Complaint and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and to those matters I believe them to be true.


DENNIS TORRESSworn to before me this
4 day of March, 2019
Notary Public